

#	Case Name	Tentative
1	Brown vs. Chapman University 2025-01517766	Demurrer to Amended Complaint The court notes that the Second Amended Complaint (SAC) has NOT been filed. The SAC was attached as exhibit 2 to a Notice (ROA #35.) The document itself does not appear as the operative pleading in the court's file. The court orders Plaintiff Shanna Brown to file the SAC with the clerks office forthwith so it appears as the operative complaint. With that said, the court will rule on the demurrer to the SAC. Defendants Chapman University, Carol Jue, Terry Boesel, Jennifer Lieu, and Glen Wakabayashi's demurrer to the 1st through 5th causes of action of the SAC is sustained in part and overruled in part as follows: The demurrer is SUSTAINED as to the first cause of action for intentional infliction of emotional distress. Brown hasn't alleged sufficient facts showing the acts were sufficiently outrageous to support the claim. The demurrer is OVERRULED as to the 2nd cause of action for discrimination. In the context of alleged racial discrimination, the dispositive question under the Unruh Act is whether the plaintiff faced unequal treatment on account of his or her race that members of other races did not experience. (<i>Smith v. BP Lubricants USA Inc.</i> (2021) 64 Cal.App.5th 138.) While coaches have broad discretion to decide who plays, how much they play, and whether they stay on the team from year to year, they may not make coaching decisions for racially discriminatory reasons. (<i>Mackey v. Board of Trustees of California State University</i> (2019) 31 Cal.App.5th 640.) This principle directly supports the viability of Brown's allegations. Brown's removal from the team, combined with the coach's alleged favoritism toward Asian players, denial of equal coaching access, and exclusion from team meetings and gatherings, goes beyond ordinary coaching discretion and raises a plausible inference of racially discriminatory motivation. The demurrer is OVERRULED as to the third cause of action for negligent supervision. Brown has alleged facts demonstrating that the university or athletic department knew or should have known about the coach's discriminatory conduct. She has alleged that the university failed to take reasonable steps to supervise the coach's conduct, investigate complaints, or implement policies to prevent discrimination. As such, the claim is properly stated

		The demurrer is OVERRULED as to the fourth cause of action for assault and battery. The allegation that Brown feared further harmful or offensive contact as a result of the coach’s repeated and aggressive conduct directly supports the apprehension element of civil assault. An offensive touching, although it inflicts no bodily harm, may nonetheless constitute a battery, and the same conduct may give rise to an assault insofar as it creates apprehension of such a battery. (<i>People v. Myers</i> (1998) 61 Cal.App.4th 328.) The intent required for battery is not an intent to cause harm, but an intent to do the act which causes the harm. (<i>Mesecher v. County of San Diego</i> (1992) 9 Cal.App.4th 1644.) The allegation that the coach intentionally and repeatedly grabbed and pulled Brown’s jersey in a forceful and aggressive manner satisfies this intent requirement, as the conduct was deliberate rather than accidental. The demurrer is SUSTAINED as to the fifth cause of action for harassment. This cause of action is duplicative of the discrimination cause of action. Brown brings this claim under the Unruh Civil Rights Act (Second Amended Complaint, paragraph 67.) Under the Unruh Civil Rights Act, there is no formal distinction between “discrimination” and “harassment” claims—both are treated as forms of intentional discrimination. (<i>Smith v. BP Lubricants USA Inc.</i>, <i>supra</i>, 64 Cal.App.5th at p. 151.) The demurrer is OVERRULED as to defendants Boesel, Lieu, and Wakabayashi. Brown has alleged agency, etc. and conspiracy between the individual defendants and Chapman. Plaintiff Brown is granted ten days leave to amend. To be clear, Plaintiff Brown is to file the SAC forthwith. If Plaintiff chooses to file a Third Amended Complaint in light of the court’s ruling on today’s demurrer, Plaintiff may do so within ten days. Defendant Chapman University to give notice.
2	DURKIN vs. MONROE 2026-01556307	Motion to Strike Defendant Angela T. Monroe aka Angela Marie Monroe’s motion to strike portions of complaint is DENIED.